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Tentative Ruling

Re: ***Terajee Hakim v. ASM Global, LLC***
Superior Court Case No. 25CECG03286

Hearing Date: September 24, 2026 (Dept. 501)

Motions: By Plaintiff for a Protective Order and Request for Sanctions
By Defendant SMG for an Order Compelling Deposition of Plaintiff and Request for Sanctions

Tentative Ruling:

To deny plaintiff Terajee Hakim's motion for a protective order. (Code Civ. Proc., § 425.420.) To deny each party's request for sanctions.

To grant defendant SMG's motion to compel plaintiff Terajee Hakim to appear at a deposition as noticed. (Code Civ. Proc. §§ 2025.450, subd. (a), 2025.280, subd. (a).)

To deny defendant SMG's request for monetary sanctions against plaintiff Terajee Hakim. (Code Civ. Proc., § 2025.450.)

Explanation:

Plaintiff Hakim's Motion for Protective Order

Plaintiff Terajee Hakim ("Plaintiff") seeks a protective order precluding her deposition by defendants ASM Global, LLC, ASM Global Fresno, LLC, and SMG (collectively "Defendants"). Plaintiff requests an order requiring that Plaintiff's deposition be scheduled on a mutually agreed upon date and an order for defendant's counsel to provide dates for deposition of the previously noticed defendants and witnesses employed by Defendant.

A protective order may be issued against the deposing party to protect a party deponent from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2025.420, subd. (b).) The moving party must show that the burdens involved in the deposition clearly outweigh the benefits sought to be obtained, that the information is unnecessarily cumulative, or that it is obtainable at less cost and inconvenience. (Code Civ. Proc., §§ 2017.020, 2019.030.) Upon motion and for good cause shown, the court may establish the sequence and timing of discovery for the convenience of parties and witnesses and in the interests of justice. (Code Civ. Proc., § 2019.020, subd. (b).)

Here, Plaintiff submits that Defendants have not provided dates for deposition of any of the requested defendants and witnesses employed by Defendants since Plaintiff's initial request on August 18, 2025. Plaintiff argues that she would suffer undue burden and oppression should her deposition proceed before any of defendants' depositions are

scheduled or completed. However, Plaintiff does not specify the harm that would result should Plaintiff be deposed before any of the defendants. As such, Plaintiff has failed to grounds for relief under Code of Civil Procedure section 2025.420, subd. (b).

For the above reasons, Plaintiff's motion for a protective order is denied.

Defendant SMG's Motion to Compel Deposition

Defendant SMG ("Defendant") seeks an order compelling the deposition of Plaintiff under Code of Civil Procedure sections 2025.450.

The service of a deposition notice under Code of Civil Procedure section 2025.240 is effective to require any deponent who is a party to the action to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying. (Code Civ. Proc., § 2025.280, subd. (a).) Code of Civil Procedure section 2025.450, subdivision (a), states in pertinent part:

If, after service of a deposition notice, a party to the action... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it... the party giving the notice may move for an order compelling the deponent's attendance and testimony... .

Code of Civil Procedure section 2025.410 specifies that if the deponent challenges a defect in the deposition notice three days before the deposition by serving a written objection, and the court determines the objection is valid, the deponent's nonappearance at the deposition cannot be used against them. (Code Civ. Proc., § 2025.410, subd (b).)

Here, Plaintiff was served with notices of deposition of Plaintiff set for March 25, 2026, April 6, 2026, and April 24, 2026. Plaintiff objected to each deposition based on unavailability, a preference to conduct depositions of individual defendants or Defendants' employees before Plaintiff's deposition, or a preference to receive dates of Defendants' witness's availability for deposition. Plaintiff argues in opposition that the instant motion should be denied because Defendant has not provided dates that Defendants' witnesses are available for deposition and because deposition of Defendants' witnesses should occur before Plaintiff's deposition. Plaintiff fails to provide authority to support that these circumstances constitute a valid objection under section 2025.410. Also, Plaintiff does not challenge the validity of the notices for deposition of Plaintiff. As such, Plaintiff's nonattendance of the noticed depositions are subject to section 2025.450.

For the above reasons, Defendant's motion to compel deposition is granted.

Sanctions

Sanctions may be imposed against a party that engages in the misuse of the discovery process if there is proper notice to the affected party, person, or attorney and an opportunity for a hearing. (Code Civ. Proc., § 2023.030, subd. (a).) Failing to respond

Frankly, both parties have acted unprofessionally. If the court ordered sanctions, they would essentially cancel each other out. There is no reason for this behavior and both parties are admonished to act professionally and cooperatively in setting depositions. There is no basis to waste court time on scheduling issues. Therefore, sanctions are unwarranted because neither party has been cooperative in the participation of discovery.

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